

Court Tentative Rulings for July 30, 2026 Department 5

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 5 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ vs BOMBAY PARTNERS V ONTARIO, LLC	MOTION FOR SUMMARY JUDGMENT BY KPRS CONSTRUCTION SERVICES

Tentative Ruling:

The Court declines to rule on the plaintiff's evidentiary objections.

The motion of defendant KPRS Construction Services for summary judgment is denied.

Analysis:

The Court does not rule on the evidentiary objections because (1) they fail to comply with CRC, rule 3.1354, and (2) the evidence to which the objections are directed is not material to the Court's analysis.

Plaintiff's supplemental opposition raises triable issues of material fact on whether KPRS retained control over the Project and affirmatively contributed to Plaintiff's injuries.

Retained Control

The evidence, viewed in the light most favorable to Plaintiff, establishes triable issues regarding KPRS's retained control:

- KPRS required its presence and participation in core operational decisions by mandating a formal pre-grading meeting before any equipment could be mobilized, and requiring Crew Inc. to attend weekly pre-job meetings to review site conditions, safety, and project logistics. (PAMF ¶¶ 3–4.)
- KPRS dictated how grading work was to be performed by requiring Crew Inc. to coordinate low areas, soils management, rough grading, and grading operations directly with the KPRS superintendent. (PAMF ¶ 5.)
- KPRS required Crew Inc. to perform grading and fill placement in accordance with the recommendations contained in the Project's soils report. (PAMF ¶ 6.)
- Crew Inc. was contractually required to stop work and notify KPRS upon encountering hazards or unsafe conditions and to report all incidents and injuries to KPRS. (PAMF ¶¶ 7–8.)
- KPRS required compliance with its own site-specific safety program, mandated participation in weekly safety meetings, retained approval authority over designated high-risk activities, and enforced compliance through fines and the unilateral authority to remove workers from the Project for safety violations. (PAMF ¶¶ 9–11.)

- KPRS held weekly progress meetings addressing safety issues. (PAMF ¶ 17.)
- Crew Inc. foreman David Carlson testified that KPRS possessed authority to intervene and direct the removal of personnel whenever it observed a safety violation. (PAMF ¶¶ 12, 19.)
- Aaron Scherer, testifying on behalf of IDIL, the property owner, disclaimed responsibility for safety recommendations concerning the groundskeeping and maintenance of the site, testifying that IDIL “hired KPRS for this.” (PAMF ¶ 13.)
- IDIL entrusted KPRS with overall management of the Project, including supervision through its full-time superintendent, site preparation and ground stabilization, maintenance of a safe jobsite, safety inspections, authority to halt work, approval of earthwork equipment, approval of work methods, and authority to determine whether subsequent phases of construction could proceed. (PAMF ¶¶ 14–23.)

As in *Madden*, “a jury could reasonably infer from this general supervisory power that [KPRS] also retained control over safety conditions, whether it chose to exercise that control or not.” (*Madden, supra*, 165 Cal.App.4th at 1276.) Here, the evidence of KPRS’s contractual rights and actual exercise of control over project coordination, safety meetings, and authority to halt work and remove personnel is substantially more extensive than the general supervision at issue in *Madden*.

Affirmative Contribution

The remaining question is whether KPRS’s exercise of retained control affirmatively contributed to Plaintiff’s injuries. The supplemental opposition raises triable issues on this point.

The Project’s geotechnical reports identified collapsible alluvial soils and required that the building pad be scarified and moisture-conditioned to two to four percent above optimum Modified Proctor moisture content before and during grading. (PAMF ¶¶ 25–39.) Plaintiff’s expert, Brad P. Avrit, P.E., opines that this specification is a technical soil-engineering compaction standard that a grading subcontractor lacks the laboratory equipment and geotechnical licensing to independently test or verify in the field. (Avrit Decl. ¶¶ 16–17.) Consistent with that opinion, Crew Inc. foreman David Carlson testified that Crew Inc. “relied on the soils report provided by KPRS” and had no instrumentation to measure Modified Proctor optimum percentages, relying completely on Southern California Geotechnical to verify compliance. (*Id.* at ¶¶ 18–19.)

KPRS received and reviewed the geotechnical reports, was in direct communication with the Project’s geotechnical consultant, and contractually required Crew Inc. to comply with the soils report. (PAMF ¶¶ 6, 16.) Yet KPRS’s PMQ, Adam Moler, testified that when asked what physical steps KPRS took to ensure Crew Inc. was pre-watering the dry, collapsible ground, KPRS did nothing “[o]ther than observing.” (*Id.* at ¶ 61.) Mr. Avrit opines that KPRS’s failure to coordinate and verify implementation of the

mandatory moisture-conditioning requirements allowed unstable subgrade conditions to persist beneath the tandem scraper operations and affirmatively contributed to the terrain failure and scraper decoupling that caused Plaintiff's injuries. (*Id.* at ¶ 58; Avrit Decl. ¶ 23.)

Under *Hooker*, "if the hirer promises to undertake a particular safety measure, then the hirer's negligent failure to do so should result in liability if such negligence leads to an employee injury." (*Hooker, supra*, 27 Cal.4th at 212, fn. 3.) On this record, a reasonable jury could find that KPRS—having contractually required compliance with the geotechnical specifications, positioned itself as the coordinator of compliance, and led Crew Inc. to rely on KPRS and the geotechnical consultant to verify compliance—affirmatively contributed to Plaintiff's injuries through its failure to ensure the mandatory moisture-conditioning was implemented before allowing heavy equipment operations to proceed on collapsible soils. Unlike *Madden*, which involved passive observation of an obvious hazard by a subcontractor equipped to address it, the geotechnical requirements here were technical specifications the grading subcontractor could not independently verify. (Avrit Decl. ¶ 18.)

Causation

KPRS argues that it was not the legal cause of Plaintiff's injuries because the scraper equipment was owned, maintained, and operated by Crew Inc. However, Plaintiff has presented evidence that the cause of the scraper decoupling was the unstable terrain conditions resulting from KPRS's failure to ensure compliance with the geotechnical stabilization requirements, not mechanical failure of the equipment. (Avrit Decl. ¶¶ 8, 16, 22, 31, 44, 48.) Mr. Avrit opines that Crew Inc. maintained appropriate machinery safety and maintenance procedures and that the evidence does not indicate the scraper equipment failed due to a mechanical defect. (*Id.* at ¶ 41.) Thus, whether KPRS's conduct was a proximate cause of the injury presents a triable issue of material fact.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2300429	MENDEZ NUNEZ vs BOMBAY PARTNERS V ONTARIO, LLC	MOTION FOR SUMMARY JUDGMENT BY EITHER IDIL RAMONA LP OR KPRS CONSTRUCTION SERVICES

Tentative Ruling:

The Court has no tentative ruling on this motion. Counsel for plaintiff, for KPRS, and for IDIL shall appear to clarify (1) who is the moving party, (2) whether the plaintiff intended to object to a MSJ by that party, (3) whether the plaintiff objects to the motion being deemed to be by IDIL, and (4) whether the plaintiff is willing to stipulate the motion being granted or to the dismissal of IDIL.

Analysis:

This motion was filed on 10-28-25. The Notice of Motion states that the motion is brought by KPRS Construction Services. (Mtn., p. 2.) However, the memorandum of points and authorities refers to IDIL as the moving party. (Mtn., pp. 3-8.) The next document, a declaration of Carlson, never mentions IDIL. Instead, it appears to be designed to support a motion by KPRS. Similarly, the separate statement states that it supports the motion of KPRS. The proposed order asks for summary judgment in favor of only IDIL.

Given the less-than-careful drafting of the motion, it is possible that the plaintiff was confused as to the moving party and failed to oppose that motion as a result of that confusion rather than as a result of an intentional decision not to oppose a motion by IDIL. The plaintiff's counsel shall be prepared to discuss the reason for the plaintiff's failure to oppose this motion and whether plaintiff is willing to stipulate to the motion being deemed one for IDIL and to the motion being granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2407078	PATTON vs NISSAN NORTH AMERICA, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR PLAINTIFFS

Tentative Ruling:

The plaintiffs' counsel's motion to be relieved as the plaintiffs' attorney of record is denied.

Analysis:

The proof of service on the two plaintiffs has not been filed. They were submitted to but rejected by the clerk's office.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505270	ZARATE vs VOLKSWAGEN GROUP OF AMERICA, INC.	MOTION FURTHER DISCOVERY RESPONSES

Tentative Ruling:

The plaintiffs' motion to compel further responses to its request for production of documents is granted as follows:

The defendant shall serve and produce all OSI and SAGA documents requested no later than August 14, 2026.

No later than August 14, 2026, the defendant shall supplement its responses by producing a privilege log supporting all documents the production of which are being withheld on the ground of attorney-client privilege. Any objections not supported by the privilege log are overruled.

Analysis:

At the initial hearing on 6-14-26, the Court ordered the parties to meet and confer regarding Nos. 1-11, 13-29, and 30, and thereafter to file a joint statement regarding any disputes that remain.

The joint statement states that the defendant agreed in March to provide documents regarding Other Similar Incidents and SAGA warranty claims in May and continues to represent that it will provide those documents now, but still has not done so. The defense says that its agreement to provide them renders this issue moot. Until those documents are produced rather than simply promised, the issue is not moot. The defendant objected to Nos. 14-30 on the ground of attorney-client privilege, but has not produced a privilege log. The defendant continues to assert that privilege, but it still has not produced a privilege log.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506485	WU vs BRINKER RESTAURANT CORPORATION	MOTION TO STRIKE COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The defendant's unopposed motion to strike portions of the First Amended Complaint is granted without leave to amend.

Analysis

The plaintiff did not oppose the motion and has proposed to amend the complaint by, inter alia, omitting all allegations regarding punitive or exemplary damages. (See motion for leave to file second amended complaint, pp. 2 & 9.) Since those allegations are being deleted, the instant motion is granted without leave to amend.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600687	SHARABY vs TESLA, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

The defendant's request for judicial notice is denied.

The plaintiff's evidentiary objections to the declaration of Kim are overruled.

The defendant's motion to compel arbitration is granted. Prosecution of the action is stayed pending the resolution of the arbitration. The clerk shall place the matter on inactive status.

Analysis:

It is unnecessary to take judicial notice of documents already filed in the same action. (Cf. *Davis v. Southern California Edison Company* (2011) 236 Cal.App.4th 619, 632, fn. 11.)

"The custodian of a document need not have been present or employed when the document was created or signed to authenticate a document in a company's files." (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 758.) Any qualified witness knowledgeable about documents may lay foundation for business records. (See *Estate of O'Connor* (2017) 16 Cal.App.4th 674, 694; Evid. Code, § 1400.)

The Court finds that the two declarations of Kim are sufficient to satisfy the defendant's burden to establish the existence of valid arbitration agreements both in the order agreement and in the RISC.

The plaintiff's claims clearly fall within the scope of the arbitration agreements. In the order agreement, the plaintiff agreed that arbitration would decide "any dispute arising out of or relating to any aspect of the relationship between [plaintiff] and Tesla." The RISC provides that arbitration shall decide "any dispute" between the parties, and specifically to claims relating to the "condition of this Vehicle"

The arbitration agreement in the order agreement is not adhesive because the plaintiff had the opportunity to opt out of arbitration but chose not to exercise that right. Thus, there is no procedural unconscionability.

Without procedural unconscionability, the agreements are enforceable.